IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No.9

CA(CAA)/18(AHM)2023

Proceedings under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

Vishakha Renewables Pvt Ltd **.....Applicant**
Vishakha Solar Films Pvt Ltd
Vishakha Plastic Pipes Pvt Ltd **.....Respondent**
Vishakha Pipes And Mouldings Pvt Ltd

Order delivered on 17/05/2023

Coram:

Mr. Deep Chandra Joshi, Hon'ble Member(J)
Mr. Ajai Das Mehrotra, Hon'ble Member(T)

ORDER

The case is fixed for pronouncement of order.

The order is pronounced in open Court vide separate sheet.

-SD- -SD-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

DEEP CHANDRA JOSHI
MEMBER (JUDICIAL)

NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
(COURT-II)

CA(CAA) 18/AHM/2023

IN THE MATTER OF THE COMPANIES ACT, 2013

[Sections 230-232 and read with Section 66 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016]

In the matter of Composite Scheme of Arrangement

OF

VISHAKHA RENEWABLES PRIVATE LIMITED
(Applicant Company No. 1/Transferee Company/Resulting Company)

AND

VISHAKHA SOLAR FILMS PRIVATE LIMITED
(Applicant Company No. 2/Transferor Company)

AND

VISHAKHA PLASTIC PIPES PRIVATE LIMITED
(Applicant Company No. 3/Demerged Company No. 1)

AND

VISHAKHA PIPES AND MOULDING PRIVATE LIMITED
(Applicant Company No. 4/Demerged Company No. 2)

AND

Their Respective Shareholders and Creditors

Order Pronounced on: 17/05/2023

Coram:
DEEP CHANDRA JOSHI,
HON'BLE MEMBER (JUDICIAL)
AJAI DAS MEHROTRA,
HON'BLE MEMBER (TECHNICAL)

MEMO OF PARTIES

Vishakha Renewables Private Limited
(CIN: U25203GJ2015PTC083485)
Registered office at;
1st Floor, Ashirwad Paras Corporate House No.2,
Opp. Krushna Bungalow,
Nr. AUDA Garden, Prahladnagar,
Ahmedabad-380015, Gujarat, India.

…Applicant Company No. 1/
Transferee Company/
Resulting Company

AND

Vishakha Solar Films Private Limited
(CIN: U25209GJ2015PTC083584)
Registered office at;
1st Floor, Ashirwad Paras Corporate House No.2,
Opp. Krushna Bungalow,
Nr. AUDA Garden, Prahladnagar,
Ahmedabad-380015, Gujarat, India.

…Applicant Company No. 2/
Transferor Company

AND

Vishakha Plastic Pipes Private Limited
(CIN: U29299GJ2008PTC053240)
Registered office at;
2nd Floor, Ashirwad Paras Corporate House No.2,
Corporate Road, Prahladnagar,
Ahmedabad-380015, Gujarat, India.

…Applicant Company No. 3/
Demerged Company No. 1

AND

Vishakha Pipes and Moulding Private Limited
(CIN: U25209GJ2022PTC129674)
Registered office at;
Vishakha House, Ashirwad Paras
Corporate House No.2, Corporate Road,

Prahladnagar, Ahmedabad-380015, Gujarat, India.

…Applicant Company No. 4/
Demerged Company No. 2

For the Applicants: Mr. Ravi Pahwa, Advocate.

ORDER

1. The present joint application is filed under Sections 230-232 read with Section 66 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016 for sanctioning the Composite Scheme of Arrangement between Vishakha Renewables Private Limited(For brevity - Applicant Company No. 1/Transferee Company/Resulting Company), Vishakha Solar Films Private Limited(For brevity- Applicant Company No. 2/Transferor Company), Vishakha Plastic Pipes Private Limited(For brevity- Applicant Company No. 3/Demerged Company No. 1) and Vishakha Pipes and Moulding Private Limited(For brevity- Applicant Company No. 4/Demerged Company No. 2), and their respective shareholders and creditors.
2. Affidavits are filed in support of the Application sworn for and on behalf of the Applicant company no. 1 and 2 by Mr. Akshat Doshi and on behalf of applicant company No. 3 and 4 by Mr. Sujal Doshi being the authorized representative for the applicant companies duly authorized vide Board resolutions passed in the respective meeting of Board of Directors on 14.02.2023 for the respective

applicant companies. It is represented that the Registered Office of all the Applicant Companies are situated within the territorial jurisdiction of this Tribunal and the Registrar of Companies, Ahmedabad.

3. It is submitted that the applicant company no. 1 having CIN: U25203GJ2015PTC083485 is incorporated, under the provisions of the Companies Act, 2013 and is presently having its Registered office at: 1st Floor, Ashirwad Paras Corporate House No.2, Opp. Krushna Bungalow, Nr. AUDA Garden, Prahladnagar, Ahmedabad-380015, Gujarat, India. The Authorised, issued, subscribed and paid-up Share Capital of the applicant company no. 1 as on 31.03.2022 is as follows:

Particulars	**INR**
Authorised Share Capital	
2,21,10,000 Equity shares of Rs. 10 each	22,11,00,000
Total	**22,11,00,000**
Issued, Subscribed and Paid-up Capital	
1,00,00,000 equity shares of Rs. 10 each	10,00,00,000
Total	**10,00,00,000**

4. It is submitted that the applicant company no. 2 having CIN: U25209GJ2015PTC083584 is incorporated, under the provisions of the Companies Act, 2013 and is presently having its Registered office at; 1st Floor, Ashirwad Paras Corporate House No.2, Opp. Krushna Bungalow, Nr. AUDA Garden, Prahladnagar, Ahmedabad-380015, Gujarat, India. The Authorised,

issued, subscribed and paid-up Share Capital of the applicant company no. 2 as on 31.03.2022 is as follows:

Particulars	**INR**
Authorised Share Capital	
1,10,00,000 Equity shares of Rs. 10 each	11,00,00,000
Total	**11,00,00,000**
Issued, Subscribed and Paid-up Capital	
1,08,00,000 equity shares of Rs. 10 each	10,80,00,000
Total	**10,80,00,000**

5. It is submitted that the applicant company no. 3 having CIN: U29299GJ2008PTC053240 is incorporated, under the provisions of the Companies Act, 1956 and is presently having its Registered office at: 2nd Floor, Ashirwad Paras Corporate House No.2, Corporate Road, Prahladnagar, Ahmedabad-380015, Gujarat, India. The Authorised, issued, subscribed and paid-up Share Capital of the applicant company no. 3 as on 31.03.2022 is as follows:

Particulars	**INR**
Authorised Share Capital	
80,00,000 equity shares of INR 10 each	8,00,00,000
1,50,00,000 preference shares of INR 10 each	15,00,00,000
Total	**23,00,00,000**
Issued, Subscribed and Paid-up Capital	

58,99,090 equity shares of INR 10 each	5,89,90,900
1,50,00,000 preference shares of INR 10 each	15,00,00,000
Total	**20,89,90,900**

6. It is submitted that the applicant company no. 4 having CIN: U25209GJ2022PTC129674 is incorporated, under the provisions of the Companies Act, 2013 and is presently having its Registered office at: Vishakha House, Ashirwad Paras Corporate House No. 2, Corporate Road, Prahladnagar, Ahmedabad-380015, Gujarat, India. The Authorised, issued, subscribed and paid-up Share Capital of the applicant company no. 4 as on 31.03.2022 is as follows:

Particulars	**INR**
Authorised Share Capital	
22,50,000 Equity shares of Rs. 10 each	2,25,00,000
Total	**2,25,00,000**
Issued, Subscribed and Paid-up Capital	
21,01,860 equity shares of Rs. 10 each	2,10,18,600
Total	**2,10,18,600**

7. It is submitted that applicant company no. 1 and 2 are involved in the business to manufacture, sell, purchase, import, export all types of Plastic film, polyester film, Solar Power related films like EVA Film, Back Sheet, Laminated back sheet, cell, silicon, glass, tinted PV module, thin-film solar cell (TFSC), thin-

film photovoltaic cell (TFPV), window film from solar guard blocks, solar home systems, Flexible Solar Panel PV Laminate, Battery charging and grid-tied solar systems, solar metal roofing and different types of polymers, chemicals, additives.

8. It is submitted that applicant company no. 3 is involved in the business of manufacturing, distributing, supplying, producing, extruding, moulding, milling. treating, drawing, cutting, handling, and to act as agent, broker, trader, buyer, seller, importer, exporter, metallurgist, engineer, vendar, contractor, supplier or otherwise to deal in all shapes, sizes, varieties, dimensions, descriptions, specifications, grades and thickness of irrigation equipment's, sprinklers, drip irrigation materials and all types of Micro Irrigation Systems, all types of pipes, tubes, hoses, fittings, pumps, profiles, all types of PVC/PE/PP pipes, tubes, hoses, filtings, profiles, coated, uncoated, printed, unprinted articles, pipes, films, tubes, all types of water, air, centrifugal pumps, filters, valves, connectors, polymers, controlled agriculture system in form of Green Houses, Poly Houses, Tissue Culture, Trunkey Projects of water supply, development of Turnkey wasteland transformation, training and extension. research and development, contract farming, turnkey projects of gas supplies and laying of marine pipelines systems.
9. It is submitted that applicant company no. 4 is involved in the business of manufacturing, trading, dealing in distributing and supplying products related to plastic and packing industries, Commission, Royalty, Brokerage, Business

Development and manufacturing, distributing, supplying, producing, extruding, moulding, milling, treating, drawing, cutting, handling, and to act as agent, broker, trader, buyer, seller, importer, exporter, metallurgist, engineer, vendor, contractor, supplier, or otherwise to deal in all shapes, sizes, varieties, dimensions, specification, grades and thickness of irrigation equipment, sprinkler, Drip irrigation material and all types of Micro Irrigation Systems all types of pipes, tubes, hoses, fittings, pumps, profiles, all type of PVC/PE/PP Pipes, tubes, hoses, fittings, profiles, coated, uncoated, printed, unprinted, articles, pipes, films, tubes, all type of water, air, centrifugal, pumps, filters, valves, connectors, polymers, controlled agriculture system in form of Green Houses, Poly Houses, Tissue culture, Turnkey Projects of water supply, development of Turnkey wasteland transformation, training, and extension research and development, contract framing, Turnkey projects of gas supplies and laying of marine pipeline systems, Extrusion, Compounding, film, bags, printing, coating, lamination, slitting, tubing, etc., sheets, pouch, packaging material, Pipes, Injection, Blow and Roto moulded articles, plastic granules and different type of polymers, chemicals, additives.

10. Rationale of the Scheme: The Scheme, inter alia, for demerger of the Pipes Undertaking of Demerged Company 1, demerger of the Plastic Undertaking of Demerged Company 2, merging into the Resulting Company and amalgamation of the Transferor Company into the Transferee Company which would result in business and operational synergies as mentioned herein under:

i) The proposed restructuring would result in following benefits/synergies for the Companies:

a. Simplification of the holding structure to result into-

- Efficiency in management, control and running of businesses of the companies concerned;
- Pooling of financial and other resources of all the Companies for optimum utilization of resources in the businesses and increased bargaining power;
- Operational synergies and efficiency which would strengthen and complement the businesses;
- Rationalization, standardization and simplification of business processes and systems;
- Minimisation of compliances, compliance cost and elimination of duplication and rationalization of administrative cost of all the Companies;

b. Focused strategy and specialization for sustained growth, which would be in the best interest of all the stakeholders and the persons connected with the Companies;

c. Investing more aggressively into new and emerging technologies;

d. Increasing long term value of all the stakeholders;

e. Ability to pursue inorganic growth with consolidated financials and better operational control;

f. Addition of new product line leading to better growth and higher sales.

ii) The Scheme is in best interests of the shareholders, employees, and creditors of all the Companies.

iii) The Scheme does not have any adverse effect on either the shareholders, the employees, or the creditors of any of the Companies.

iv) The Boards of Directors of all the Companies believe that the Scheme would ensure benefit to all the stakeholders and will enhance the value for all shareholders of all the Companies.

11. It is also represented that the registered offices of all the applicant companies are situated within the territorial jurisdiction of Registrar of Companies, Ahmedabad, Gujarat, which is falling under the jurisdiction of this Tribunal.

12. All the Applicant Companies have filed their respective Memoranda and Articles of Association inter alia delineating their object clauses along with their audited financial statement for the year of 2021-22, respectively and all the applicant companies have also filed their unaudited financial statements as at 30.09.2022, respectively.

13. The Board of Directors of all the applicant companies have unanimously approved the proposed Scheme of Arrangement as contemplated above. Copies of respective board resolutions of all the applicant companies dated 14.02.2023 passed in their respective board meetings have been placed on record.

14. The certificates issued by the Statutory Auditor under section 133 of the Companies Act, 2013, of all the applicant companies are placed on record.
15. The Applicant Companies have placed on record their Valuation Reports prepared by Registered valuer CA Hitendra Ranka (IBBI registration Number-IBBI/RV/06/2019/11695).
16. It is further submitted that all the Applicant Companies are not listed companies, hence approval of SEBI, is not required. It is further disclosed that there are no foreign shareholders in any of the applicant companies, hence RBI regulations are not applicable. It is also submitted that notification of the Scheme to the Competition Commission of India is exempted under schedule I of the Competition Commission of India (Procedure in regard to the Transaction of Business relating to the Combination) Regulation, 2011 therefore provisions of the CCI are not applicable. All the applicant companies are not infrastructure companies and there are no ongoing infrastructure projects. therefore, there is no requirement of sending notices to RERA.
17. All the applicant companies have submitted that no investigation or proceedings against the Applicant Companies are pending under section 210 to 227 of the Companies Act, 2013.
18. With respect to the **Applicant Company No. 1,** it is stated that:
    a) There are 5 equity shareholders and certificate from Chartered Accountant certifying list of shareholders is annexed. All equity shareholders have given their consent by way of affidavits for the proposed composite scheme of

arrangement. The copies of the consent affidavits of all equity shareholders are annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of equity shareholders.

b) There is 4 secured creditors and certificate from Chartered Accountant certifying list of the secured creditor is annexed with application. In absence of any consents obtained from secured creditors, the company is seeking holding/convening the meeting of secured creditors.

c) There are 159 unsecured creditors and certificate from Chartered Accountant certifying list of the unsecured creditors is annexed with application. In absence of any consents obtained from unsecured creditors, the company is seeking holding/convening the meeting of unsecured creditors.

19. With respect to the **Applicant Company No. 2,** it is stated that:

a) There are 5 equity shareholders and certificate from Chartered Accountant certifying list of shareholders is annexed and all equity shareholders have given their consent by way of affidavits for the proposed composite scheme of arrangement. The copies of the consent affidavits of all equity shareholders are annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of equity shareholders.

b) There are 2 secured creditors and certificate from Chartered Accountant certifying list of the secured creditor is annexed with application. In absence of any consents obtained from secured creditors, the company is seeking holding/convening the meeting of secured creditors.

c) There are 77 unsecured creditors and certificate from Chartered Accountant certifying list of the unsecured creditors is annexed with application. In absence of any consents obtained from unsecured creditors, the company is seeking holding/convening the meeting of unsecured creditors.

20. With respect to the **Applicant Company No. 3,** it is stated that:

a) There are 5 equity shareholders and certificate from Chartered Accountant certifying list of shareholders is annexed and all equity shareholders have given their consent by way of affidavits for the proposed composite scheme of arrangement. The copies of the consent affidavits of all equity shareholders are annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of equity shareholders.

b) There is 1 preference shareholder and certificate from Chartered Accountant certifying list of the preference shareholder is annexed. The copy of the consent affidavit of the sole preference shareholder is annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of preference shareholders.

c) There is 3 secured creditor and certificate from Chartered Accountant certifying list of the secured creditor is annexed. In absence of any consents obtained from secured creditor, the company is seeking holding/convening the meeting of secured creditor.

d) There are 160 unsecured creditors and certificate from Chartered Accountant certifying list of the unsecured creditors is annexed with application. In

absence of any consents obtained from unsecured creditors, the company is seeking holding/convening the meeting of unsecured creditor.

21. With respect to the **Applicant Company No. 4,** it is stated that:

a) There are 4 equity shareholders and the certificate from Chartered Accountant certifying list of shareholders is annexed and all equity shareholders have given their consent by way of affidavits for the proposed composite scheme of arrangement. The copies of the consent affidavits of equity shareholders are annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of equity shareholders.

b) There are 2 secured creditors and certificate from Chartered Accountant certifying list of the secured creditors is annexed with application. In absence of any consents obtained from secured creditors, the company is seeking holding/convening the meeting of secured creditors.

c) There are 74 unsecured creditors and certificate from Chartered Accountant certifying list of the unsecured creditors is annexed with application. In absence of any consents obtained from unsecured creditors, the company is seeking holding/convening the meeting of unsecured creditors.

22. The bench sought some clarification vide order dated 18.04.2023. In compliance with this order, the applicant companies filed affidavit on 28.04.2023 and annexed the copy of board resolutions / authorizations / letters of nominee for the all the applicant companies.

23. Taking into consideration the submissions and the documents filed therewith, we issue the following directions:

i) In relation to the Applicant Company No. 1:

a. With respect to Equity Shareholders:

Convening of the meeting of equity shareholders of the company is hereby dispensed with, in view of 100% consent affidavits of shareholders on record.

b. With respect to Secured Creditors:

The meeting of Secured Creditors of the Company shall be convened on 01.07.2023 at 10:30 am.

c. With respect to Unsecured Creditors:

The meeting of Unsecured Creditors of the Company shall be convened and held on 01.07.2023 at 02:00 pm.

ii) In relation to the Applicant Company No. 2:

a. With respect to Equity Shareholders:

Convening of the meeting of equity shareholders of the company is hereby dispensed with, in view of 100% consent affidavits of shareholders on record.

b. With respect to Secured Creditors:

The meeting of Secured Creditors of the Company shall be convened on 01.07.2023 at 11:15 am.

c. With respect to Unsecured Creditors:

The meeting of Unsecured Creditors of the Company shall be convened and held on 01.07.2023 at 03:00 pm.

iii) In relation to the Applicant Company No. 3:

a. With respect to Equity Shareholders:

Convening of the meeting of equity shareholders of the company is hereby dispensed with, in view of 100% consent affidavits of shareholders on record.

b. With respect to Preference Shareholders:

Convening of the meeting of preference shareholder of the company is hereby dispensed with, in view of 100% consent affidavit of shareholder on record.

c. With respect to Secured Creditors:

The meeting of Secured Creditor of the Company shall be convened on 01.07.2023 at 12:00 pm.

d. With respect to Unsecured Creditors:

The meeting of Unsecured Creditors of the Company shall be convened on 01.07.2023 at 04:00 pm.

iv) In relation to the Applicant Company No. 4:

a. With respect to Equity Shareholders:

Convening of the meeting of equity shareholders of the company is hereby dispensed with, in view of 100% consent affidavits of shareholders on record.

b. With respect to Secured Creditors:

The meeting of Secured Creditors of the Company shall be convened on 01.07.2023 at 12:45 pm.

c. With respect to unsecured Creditors:

The meeting of Unsecured Creditors of the Company shall be convened and held on 01.07.2023 at 05:00 pm.

24. All the meetings of the secured creditors and unsecured creditors of the all-applicant companies no. 1, 2, 3 and 4 shall be held at CH-09, Inspire Business Park, Adani Shantigram, Nr Vaishnodevi Circle, SG Highway, Ahmedabad-382421 for the purpose of considering and, if thought fit, approving with or without modifications the proposed Scheme.

25. At least one month before the date of the aforesaid meetings, an advertisement about convening of the said meeting, indicating the day, date, place and time, as aforesaid, shall be published in the publication newspapers in English and vernacular language i.e., "Financial Express" English newspaper and "Financial Express" Gujarati newspaper (both Ahmedabad edition), which shall indicate the time within which copies of scheme shall be made available to the concerned persons free of charge from the registered office of Applicant Transferee Company. The publication shall also indicate that the statement required to be furnished pursuant to Section 102 of the Act read with Sections 230 to 232 of the Act can be obtained free of charge at the registered office of the Applicant Transferee Company in accordance

with second proviso to sub-section (3) of Section 230 and Rule 7 of the Companies (CAA) Rules, 2016.

26. In addition, at least one month before the date of the meeting of the secured and unsecured Creditors of all the applicant company no. 1,2, 3 & 4 to be held as aforesaid, a notice convening the said meeting, indicating the day, date, place and time, as aforesaid, together with a copy of the scheme, a copy of statement required to be furnished pursuant to Section 102 of the Act read with Sections 230 to 232 and Rule 6 of the Companies (CAA) Rules, shall be sent to each of the secured and unsecured Creditors of all the applicant Company no. 1, 2, 3, & 4 at their respective registered or last known addresses either by Registered post or Speed Post/Airmail or E-Mail or by Courier or by Hand Delivery. The Notices shall be sent to the secured and unsecured creditors of the applicant company no. 1, 2, 3 & 4 with reference to the list of the persons appearing on the record of all the applicant company no. 1, 2, 3 & 4 as on 31.01.2023 and the voting percentage of such creditors as per list is to be decided after considering the amount of debt as on the date of voting, which is to be ensured by the Chairperson.

27. Mrs. Noopur K Dalal and in her absence Mr. Bhargav C Thakkar, is hereby appointed as Chairperson of the aforesaid meeting of the secured and unsecured Creditors of all the applicant company no. 1, 2, 3 & 4 to be held on 01.07.2023 and in respect of any adjournment or adjournments thereof.

28. Mr. Tapan Shah, Practicing Company Secretary and in his absence Mr. Mukesh Shah shall act as the scrutinizer of the aforesaid meeting and in respect of any adjournment thereof.
29. The honorarium of the Chairperson for all the aforesaid meetings of the all the applicant company no. 1, 2, 3, & 4 shall be Rs. 35,000/- and the honorarium of the Scrutinizer shall be Rs. 40,000/-, in addition to re-imbursement of their incidental and out of pocket expenses. In case of unavailability of the Chairperson for any reason, the Alternate Chairperson shall discharge the responsibilities/ functions of the Chairperson and shall be paid on pro-rata basis for any meetings conducted at the scale of Chairperson.
30. The Chairperson appointed for the aforesaid meeting shall issue the advertisements and send out the notices of the meeting referred to above. The Chairperson is free to avail the services of the applicant transferee/resulting company or any agency for carrying out the aforesaid directions.
31. The Chairperson shall have all powers under the Articles of Association of the Applicant Company and also under the Rules in relation to the conduct of meetings, including for deciding any procedural questions that may arise at the meetings or adjournment(s) to the aforesaid scheme or resolution, if any, proposed at the aforesaid meeting by any person(s) and to ascertain the

decision of the meeting of the secured and unsecured creditors of all the applicant Company no. 1, 2, 3 & 4 by polling paper/ballot.

32. The Chairperson to file an affidavit at least 7(seven) days before the date fixed for the holding of the meetings and to report to this Tribunal that the directions regarding issuance of notices and advertisement of the meeting have been duly complied with as per Rule 12 of the Companies (CAA) Rules, 2016.
33. It is further ordered that the Chairperson of the company shall report to this Tribunal the result of the meeting in Form No.CAA.4, verified by his affidavit, as per Rule 14 of the Companies (CAA) Rules, 2016 in from No. CAA.4 within seven days after conclusion of the meetings.
34. The quorum for the aforesaid meeting of the Secured and unsecured creditors of the all the applicant company no. 1, 2, 3 & 4 shall be as prescribed under Section 103 of the Companies Act, 2013.
35. Voting by proxy/authorized representative is permitted provided that the proxy is in the prescribed form/authorization duly signed by the person entitled to attend and vote at the aforesaid meeting and is filed with the applicant companies not later than 48 hours before the said meeting, vide Rule 10 of the Companies (CAA) Rules, 2016 read with section 105 of the Act.
36. The number and value of the vote or the value of debt of the secured and unsecured creditors of all the applicant company no. 1, 2, 3 & 4, as the case

may be, shall be as per the entries in the books of accounts of the companies for the secured & unsecured Creditors; and where the entries in the records are disputed, the Chairperson of the meetings shall determine the value for the purposes of the meetings.

37. In compliance of sub-section (5) of Section 230 and Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, the applicant transferee/resulting company shall send a notice in Form No.CAA.3 along with disclosures mentioned under Rule 6, to (i) the Central Government through the Regional Director, North Western Region, (ii) the Registrar of Companies, Gujarat, (iii) to the Income Tax Department along with full details of assessing officer and PAN numbers of all the applicant companies with the copy also to the Chief Commissioner of Income Tax Office (iv) to the Official Liquidator attached to High Court, Gujarat, stating that representations, if any, to be made by them shall be made within a period of 30 days from the date of receipt of such notice, failing which it shall be presumed that they have no objection to make on the proposed Scheme. The said notices shall be sent forthwith by registered post or by speed post or by courier or by hand delivery or by an email at the office of the authority as required by sub-rule (2) of Rule 8 of the Companies (CAA) Rules, 2016. The aforesaid authorities, who desire to make any representation under sub-section (5) of Section 230, shall send the same to the Tribunal within a period of 30 days from the date of receipt of such notice, failing which it will be

deemed that they have no representation to make on the proposed arrangement.

38. This Company Application is allowed and disposed of accordingly.

-Sd-	**-Sd-**
AJAI DAS MEHROTRA	**DEEP CHANDRA JOSHI**
MEMBER (TECHNICAL)	**MEMBER (JUDICIAL)**